

**UNITED STATES DISTRICT COURT  
EASTERN DISTRICT OF NEW YORK**

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FABIO S. TAVERAS :  
 : **AMENDED COMPLAINT**  
 :  
Plaintiff, : **JURY TRIAL DEMANDED**  
 :  
-against- : **06-CV-3807(SJ)(RMJ)**  
 :  
THE CITY OF NEW YORK, NEW YORK CITY POLICE :  
DEPARTMENT, NEW YORK CITY DEPARTMENT OF :  
EDUCATION, DETECTIVE JUSTIN F. HUGHES, :  
Individually and as Detective of the New York :  
City Police Department, JOHN J. PATTAY, :  
Individually and as Custodian Engineer of the :  
Queens High School of Teaching and RAYMOND :  
ORTIZ, Individually and as Fireperson for :  
Defendant JOHN J. PATTAY, :  
Defendants. :  
-----X

**COMPLAINT**

Plaintiff, Fabio S. Taveras by his attorney, Gregory G. Smith of the Law Offices of Gregory Smith and Associates, complains of defendants, THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK CITY DEPARTMENT OF EDUCATION, DETECTIVE JUSTIN F. HUGHES, JOHN J. PATTAY, and RAYMOND ORTIZ, hereinafter referred to as "defendants", and allege as follows:

**JURISDICTION AND VENUE**

1. This action arises under the Constitution of the United States, particularly the Fourth, Sixth, and Fourteenth Amendments to the Constitution of the United States, and under the laws of the United States,

particularly the Civil Rights Act, Title 42 of the United States Code, Sections 1983, 1988 and Title VII of the Civil Rights Act of 1964, as amended, 42 U.S.C. § 2000e et seq. ("Title VII").

2. The jurisdiction of this court is invoked under the provisions of Title 28 of the United States Code, Sections 1331 and 1343.
3. This court has supplemental jurisdiction pursuant to 28 U.S.C. §1367(a) over any and all state constitutional and state law claims that are so related to the claims within the original jurisdiction of this Court.
4. Venue of this action is proper under 28 USC § 1391(b) because it is where the events complained of occurred.

#### **PARTIES**

5. Plaintiff, Fabio S. Taveras, is a black Hispanic male, originally from the Dominican Republic and at all times relevant hereto he was a permanent legal resident of the United States of America and resident of the City of New York, County of New York and State of New York.
6. Upon information and belief, and at all times hereinafter mentioned, Plaintiff, Fabio S. Taveras,

hereinafter referred to as "Plaintiff", was employed by defendant John J. Pattay as a Cleaner assigned to Queens High School of Teaching, located at 74-20 Commonwealth Blvd., Bellerose, New York, hereinafter referred to as "High School", at the time of the alleged acts.

7. Upon information and belief and at all times hereinafter mentioned Plaintiff had an exemplary employment record.
8. At all times hereinafter mentioned, the defendant, Justin F. Hughes, hereinafter referred to as "Defendant Hughes", was employed as a Detective of the New York City Police Department assigned to the Detective Squad at the 105<sup>th</sup> precinct located at 92-08 222nd Street Queens Village, New York. Defendant is sued in his individual and official capacity.
9. Upon information and belief, at all times hereinafter mentioned, the defendant, Raymond Ortiz, hereinafter referred to as "defendant Ortiz", was employed by defendant John J. Pattay and assigned to the High School and acting in the capacity of Fireperson. A fireperson supervises the cleaning staff in the Custodian Engineer's absence. Defendant is sued in his individual and official capacity.

10. At all times hereinafter mentioned, the defendant, The City of New York was a municipal corporation organized and existing under and by virtue of the laws of the State of New York. Under the Charter of the City of New York, the City is responsible for the conduct of municipal agencies such as The New York City Department of Education and the New York City Police Department.
11. At all times hereinafter mentioned, the defendant, New York City Police Department hereinafter referred to as "NYPD", is a department of the City established by the New York City Charter § 431.
12. At all times hereinafter mentioned, the defendant, The New York City Department of Education, hereinafter referred to as "DOE", operates its schools under an Indirect System of Custodial Care, wherein The Department of Education employs School Custodians and School Custodian Engineers under the Civil Service System of the City of New York. Upon information and belief, custodial schedules, and terms and conditions of employment are negotiated with Local Union #891 of the International Union of Operating Engineers, AFL-CIO.

13. Upon information and belief, at all times hereinafter mentioned, the defendant, Local Union #891 of the International Union of Operating Engineers, AFL-CIO, hereinafter referred to as "Union", has a contract with the DOE to provide School Custodians and Custodial Engineers.

14. Upon information and belief, at all times hereinafter mentioned, the defendant, John J. Pattay, hereinafter referred to as "defendant Pattay" has a contract with the City of New York to be the Custodian Engineer to the Queens High School for Teaching. Defendant Pattay employed both the Plaintiff and defendant Ortiz. Defendant is sued in his individual and official capacity.

15. At the time of the alleged incident and at all times pertinent hereto, Defendants acted under color of law, of a statute, ordinance, regulation, custom, or usage.

#### **NOTICE OF CLAIM**

16. Within 90 days after the claim herein arose, on May 22, 2006, a Notice of Claim setting forth the name and post office address of the claimants and of their attorneys, the nature of the claim, the time when, the place where, and the manner in which the claim arose, and the items of damage and injuries claimed to have

been sustained so far as then practicable, was served upon the defendant, The City of New York.

17. At least 30 days have elapsed since the service of aforesaid Notice of Claim, and adjustment or payment thereof has been neglected or refused.

18. This action is being commenced within one year and 90 days after the happening of the event upon which the claim is based.

#### **STATEMENT OF CLAIM**

19. On or about August 18, 2005, while Plaintiff was working inside of the High School, defendant Ortiz accused Plaintiff of working on the wrong floor inside of the school and yelled racial obscenities at Plaintiff and assaulted Plaintiff by pushing, shoving, grabbing and striking Plaintiff about the body and arms with a wooden stick, causing Plaintiff to be placed in fear of serious bodily injury and to sustain bodily injuries.

20. On or about August 18, 2005, Plaintiff sought emergency medical treatment at Long Island Jewish Medical Center as a result of the assault.

21. On or about August 18, 2005, after the aforementioned assault, defendant Pattay arrived at the High School. Upon information and belief, defendant Pattay did not

want to listen to Plaintiff when he tried to explain the facts and circumstances of what had occurred between Plaintiff and defendant Ortiz. Defendant Pattay only paid attention to defendant Ortiz. Plaintiff told defendant Pattay he was calling the police and his union representative (Local Union #74 of the Service Employees International Union).

22. On or about August 18, 2005, defendant Pattay terminated Plaintiff after Plaintiff stated that he was going to report the aforementioned assault to the police and his union representative.

23. On information and belief, defendant Pattay's official reason for the termination was insubordination and failure to follow a directive.

24. On or about August 18, 2005, Plaintiff filed second degree assault as well as harassment charges against defendant Ortiz in response to the aforementioned assault.

25. Upon information and belief, approximately between August 18 and August 29, 2005, defendant Ortiz and others conspired to have Plaintiff arrested for filing a false complaint with the NYPD for the August 18, 2005 incident.

26. On or about August 29, 2005, Plaintiff was in fact arrested by defendant Hughes for filing a false report with the NYPD. Plaintiff was handcuffed and locked in a cell at the 105th Precinct. He was imprisoned there for four (4) hours prior to release. During that period of time he was finger printed and his photograph was taken.

27. On or about August 30, 2005 to the date of this complaint solely due to and because of Plaintiff's false arrest Plaintiff's New York City Taxi and Limousine issued license #5112809 was suspended or revoked without any fault of the Plaintiff.

28. On or about August 31, 2005 to the date of this complaint solely due to and because of Plaintiff's false arrest Plaintiff's ability to be employed by DOE was suspended or terminated without any fault of the Plaintiff.

29. On or about September 12, 2005, to the date of this complaint solely due to and because of Plaintiff's false arrest Plaintiff's New York State issued Security Guard license and registration UID# 10004811865 has been suspended or revoked without any fault of the Plaintiff.



30. Plaintiff states that the assault, battery, false arrest and malicious prosecution caused him extreme emotional distress, and that although defendants were aware of the distress and his susceptibility to it, they not only failed to stop the assault, battery, false arrest and malicious prosecution but were responsible for it.

31. On or about December 3, 2005, by written decision of Arbitrator Robert Herzog, Plaintiff was reinstated to his Cleaner's position with one week's back pay.

32. On or about January 2006, Plaintiff resumed his duties as cleaner at the High School.

33. On or about January 2006, defendant Pattay continued to discriminate against Plaintiff by treating him differently and unequally to other school Cleaners.

34. As an example, but not the sole example of such discriminatory treatment, on or about January 2006, Plaintiff was assigned to much more difficult and time consuming cleaning tasks than the other non Dominican cleaners.

35. In or about the first week of January 2006, Plaintiff stated to defendant Pattay that he believed he was being treated unfairly because he is Dominican.

36. Upon information and belief, defendant Pattay's practice was to assign each cleaner in the High School the responsibility of cleaning two floors.
37. On or about the first week in January 2006, defendant Pattay retaliated against Plaintiff by assigning Plaintiff to two of the worst floors in the school - floors needing the most maintenance and up-keep.
38. On or about January 2006, for discriminatory and retaliatory reasons, defendant Pattay did not provide Plaintiff with any guidance for his performance expectations.
39. On or about January 2006, for discriminatory and retaliatory reasons, defendant Pattay provided Plaintiff with no help and with no overtime allowances for his performance expectations.
40. In or about the first week of January 2006, as an example, but again not the sole example of such retaliatory, harassing and discriminatory treatment, when Plaintiff could not complete the job by the end of the work-day, defendant Pattay verbally harassed Plaintiff for not having completed the cleaning assignments.
41. In or about the first week of January 2006, as a further example of such retaliatory, harassing and

discriminatory treatment, Plaintiff was told by defendant Pattay to either complete the work on time or to resign.

42. On or about February 23, 2006, defendant Pattay discriminated and retaliated against Plaintiff by terminating him for the second time from his employment as a Cleaner.

43. Upon information and belief, after Plaintiff was terminated defendant Pattay hired a male white named Brian Maguire to fill his position.

44. Upon information and belief, Mr. Maguire is granted overtime and the opportunity to work on weekends to complete his cleaning assignments.

45. As a result of the termination, Plaintiff suffered a loss of income and fringe benefits.

46. As a result of the termination, harassment, hostile work environment, discrimination and retaliation, Plaintiff suffered emotional harm and harm to his reputation.

47. Defendants' acts of discrimination were performed with malice and reckless indifference to Plaintiff's protected civil rights. The foregoing actions of defendant discriminated against Plaintiff because of his race, national origin and retaliation in violation

Title VII of the Civil Rights Act of 1964, as amended,  
42 U.S.C. § 2000e-2 and 3.

**First Cause of Action**  
**{42 U.S.C. 1983}**  
**FALSE ARREST**

48. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.
49. On September 8, 2005, before a justice of the County of Queens, City of New York and State of New York, defendant Hughes made, and swore to, a criminal complaint in which defendant falsely, maliciously, and with no probable cause accused Plaintiff of having committed the crime of filing a false complaint pursuant to Penal law § 240.50.
50. Plaintiff did not at the time of the events alleged in this criminal complaint, nor at any other time, commit any offense against the statutes of the State of New York or any other ordinances of any municipality.
51. On or about August 29, 2005, Plaintiff was arrested by defendant Hughes and charged under New York State Penal Law §240.50 with Filing a False Instrument in the Third Degree. Plaintiff was handcuffed by defendant Hughes at the 105<sup>th</sup> Precinct of the New York City Police Department where he was finger printed,

photographed and locked in a cell prior to release. Plaintiff's detention lasted approximately four (4) hours.

52. On or about February 1, 2006 at a preliminary hearing on the aforementioned criminal charge, Plaintiff's court action was dismissed and sealed and no further criminal proceedings are pending against Plaintiff.

53. Plaintiff was unlawfully arrested by defendant Hughes under color of New York State Penal Law Statute § 240.50 and under color of law and his official capacity as Detective for the City of New York. Notwithstanding that such acts were beyond the scope of his jurisdiction, without authorization of law and were an abuse of his powers and discretion.

54. None of the defendants, at the time of the above mentioned arrest or at any time during the subsequent detention of Plaintiff, had in their possession any warrant issued by any judge, court, or magistrate authorizing an arrest of Plaintiff, nor had any warrant in fact been issued by any court, judge or magistrate for Plaintiff's arrest.

55. Plaintiff alleges that he was arrested without probable cause by defendant Hughes who, under the facts available to him at the time, did not have an

objective, good faith belief that Plaintiff committed the aforementioned criminal charge. At no time pertinent thereto did defendant Hughes or any other defendant have probable cause to believe Plaintiff had committed or was committing the aforementioned criminal charge.

56. Plaintiff alleges that defendants Ortiz, Pattay and others known and unknown conspired to have him arrested and maliciously prosecuted in an attempt to cover up and justify their discriminatory, offensive and malicious acts and conduct in assaulting and firing Plaintiff from his employment.

57. Plaintiff further alleges that such arrest was in violation of his rights under the Fourth Amendment of the United States Constitution to be free from unreasonable arrest, under the Fourteenth Amendment to due process of law and his Sixth Amendment right to confront his accuser(s).

58. Defendants Hughes, Pattay, Ortiz, and others known and unknown, all acted maliciously, willfully, knowingly, and with specific intent to deprive Plaintiff of his right to freedom from unlawful arrest and detention and malicious prosecution. Each such alleged act committed by defendants Hughes, Pattay, Ortiz, and others known

and unknown caused injury and damage in violation of Plaintiffs' constitutional rights secured by the Fourth, Sixth, and Fourteenth Amendments to the Constitution of the United States, and by Title 42, United States Code, Section 1983.

59. Upon information and belief, at all times material to this complaint, defendant The City of New York, acting through The New York City Police Department, and The New York City Department of Education had policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein, including: (a) unlawful arrest and detention; and (b) malicious prosecution. Each such policy, practice, custom and usage caused injury and damage in violation of Plaintiffs' constitutional rights secured by the Fourth, Sixth, and Fourteenth Amendment to the Constitution of the United States, and by Title 42, United States Code, Sections 1983.

**AS AND FOR A SECOND CAUSE OF ACTION**  
(42 U.S.C. 1983)  
**MALICIOUS PROSECUTION**

60. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

61. By the actions described above, defendants maliciously prosecuted plaintiff without any right or authority to do so. The defendants' accusation and complaint, and each and every allegation of the complaint, were, and are, false, malicious, and without probable cause.

62. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated his constitutional rights as secured by the Fourth, Sixth, and Fourteenth Amendments to the Constitution of the United States, and by Title 42, United States Code, Section 1983.

**AS AND FOR A THIRD CAUSE OF ACTION  
ASSAULT AND BATTERY**

63. The Plaintiff incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

64. By the actions described above, defendant Ortiz did inflict assault and battery upon Plaintiff. The acts and conduct of defendant Ortiz were the direct and proximate cause of injury and damage to the plaintiff in violation of the laws of the State of New York and the United States.



65. Defendant Pattay, as employer of defendant Ortiz, is responsible for defendant Ortiz's assault and battery under the doctrine of Respondeat Superior.

66. Defendants City of New York, and DOE their officers, agents, servants, and employees were responsible for Plaintiffs' assault and battery under the doctrine of Respondeat Superior.

67. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific bodily injury, pain and suffering, emotional distress and psychological injury, great humiliation, loss of income, costs and expenses, and was otherwise damaged and injured.

**AS AND FOR A FOURTH CAUSE OF ACTION  
NEGLIGENT HIRING AND RETENTION**

68. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

69. At the time defendant Pattay hired defendant Ortiz for the position of Fireperson defendant Pattay knew or should have known that defendant Ortiz had a propensity to engage in and/or attempt to engage in harassing, assaulting, and discriminatory conduct and language to others and particularly to Plaintiff.

70. As a result of defendant Pattay's negligence in hiring and retaining defendant Ortiz, Plaintiff was exposed

to and suffered foreseeable harm that but for defendant Pattay's negligence could have been avoided.

71. That defendant Pattay's conduct was a proximate cause of the injuries suffered by Plaintiff and all damages concomitant thereto and all in violation of the laws of the State of New York and the United States.

72. Because of defendant Pattay's negligence in hiring and retaining defendant Ortiz, Plaintiff is now suffering and will continue to suffer the aforementioned damages.

**AS AND FOR A FIFTH CAUSE OF ACTION  
NEGLIGENCE**

73. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

74. The NYPD was negligent in the training and supervision of defendant Hughes.

75. Defendant Hughes acted in a reckless and grossly negligent manner and in complete disregard for the rights of the Plaintiff when he arrested Plaintiff without a competent investigation of all key witnesses and parties to the criminal complaint and without probable cause that he had committed a crime.

76. Upon information and belief, from on or about August 18, 2005 to on or about August 29, 2005, defendant Hughes, as part of his investigation of Plaintiff's alleged crime, did not use a Spanish interpreter while gathering information from Spanish speaking witnesses where their statements would have exculpated Plaintiff of the alleged false charges.

77. As a result of the NYPD's negligence in training and supervising defendant Hughes, Plaintiff was exposed to and suffered foreseeable harm that but for the defendant's negligence could have been avoided.

78. That NYPD's conduct was a proximate cause of the injuries suffered by Plaintiff and all damages concomitant thereto and all in violation of the laws of the State of New York and the United States.

79. Because of NYPD's negligence in training and supervising defendant Hughes, Plaintiff is now suffering and will continue to suffer the damages stated herein.

**AS AND FOR A SIXTH CAUSE OF ACTION  
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

80. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

81. Defendants by their conduct including assaulting, battering, falsely arresting and maliciously prosecuting Plaintiff have intentionally caused Plaintiff to suffer severe emotional distress.

82. As a result of defendants' conduct, Plaintiff has suffered damages, including but not limited to emotional distress and loss of reputation.

**AS AND FOR A SEVENTH CAUSE OF ACTION  
Title VII, 42 U.S.C. § 2000e-2  
EMPLOYMENT DISCRIMINATION**

83. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

84. By the above acts, including the decision to terminate Plaintiff and creating a hostile work environment defendants have violated Title VII by discriminating against Plaintiff because of his race and national origin and in retaliation for opposing discrimination.

85. Defendant's acts were with malice and reckless disregard for Plaintiff's federally protected civil rights.

86. Plaintiff is now suffering and will continue to suffer irreparable injury and monetary damages as a result of defendants' discriminatory practices unless and until this Court grants relief.

**AS AND FOR A EIGHTH CAUSE OF ACTION**  
**Title VII, 42 U.S.C. § 2000e-3 [Section 704]**  
**RETALIATION**

87. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

88. By giving Plaintiff unreasonable work assignments, harassing plaintiff and creating a hostile work environment, defendants have retaliated against Plaintiff for opposing discriminatory employment practices.

89. Plaintiff is now suffering and will continue to suffer irreparable injury and monetary damages as a result of Defendant's purposeful discriminatory practices unless and until this Court grants relief.

**AS AND FOR A NINTH CAUSE OF ACTION**  
**Title VII, 42 U.S.C. § 2000e-3 [Section 704]**  
**RETALIATION**

90. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

91. By terminating Plaintiff defendants have retaliated against Plaintiff for opposing discriminatory employment practices.

92. Plaintiff is now suffering and will continue to suffer irreparable injury and monetary damages as a result of Defendant's purposeful discriminatory practices unless and until this Court grants relief.

#### **ALLEGATIONS**

93. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered fear, humiliation, physical injuries, public ridicule, loss of personal reputation, loss of income, costs and expenses, and was otherwise damaged.

94. By reason of the above premises plaintiff is entitled to compensatory and consequential damages.

95. Plaintiff has incurred attorneys' fees and other expenses in defending himself against defendant's malicious and unfounded charge.

96. Defendant acted maliciously and with the intent to injure Plaintiff.

97. By reason of the above premises Plaintiff is entitled to punitive damages.

98. Pursuant to 42 USCA, Section 1988, Plaintiff is entitled to a reasonable allowance for attorneys fees as part of his costs.

**PRAYER FOR RELIEF**

**WHEREFORE**, plaintiff Fabio S. Taveras requests that this Court:

- (1) Accept jurisdiction over the parties;
- (2) Empanel and charge a jury with respect to this action;
- (3) Award to plaintiff Fabio S. Taveras compensatory, consequential and punitive damages with pre and post-judgment interest to compensate him for the injuries he has suffered;
- (4) Order defendants to pay cost of suit
- (5) Order defendants to pay the reasonable attorneys fees and other costs incurred by Plaintiff as provided by Section 1988 of Title 42 and the Civil Rights Acts;
- (6) Award plaintiff Fabio S. Taveras any other relief deemed necessary, just and proper.

Dated: New York, New York  
March 22, 2007

Respectfully submitted,

\s\ Gregory G. Smith  
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